

GZ: 2023-0.772.005 dated November 6, 2023 (Case Number: DSB-D124.0701/23)

[Note from the editor: Names and companies, legal forms and product designations, addresses (including URLs, IP and email addresses), file numbers (and the like), etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected.]

DECISION RULING

The Data Protection Authority decides on the data protection complaint of Dr. Franziska A*** (complainant) dated April 5, 2023, against the municipal community N*** (respondent) regarding the alleged violation of the right to confidentiality as follows:

- The complaint is upheld, and it is determined that the respondent has violated the complainant's right to confidentiality by providing a registration information to a private detective agency regarding the complainant despite the existence of a confidentiality request, without notifying the complainant in advance and allowing her the opportunity to comment.

Legal bases: Art. 5, Art. 6, Art. 51 para. 1, Art. 57 para. 1 lit. f, and Art. 77 para. 1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter: GDPR), OJ No. L 119 of May 4, 2016, p. 1; §§ 1 para. 1 and para. 2, 18 para. 1, as well as 24 para. 1 and para. 5 of the Data Protection Act (DSG), Federal Law Gazette I No. 165/1999 as amended; §§ 16 and 18 of the Federal Act on Police Registration (Registration Act 1991 – MeldeG), Federal Law Gazette No. 9/1992 as amended.

REASONING

A. Submissions of the Parties and Procedural History

1. In her complaint dated April 5, 2023, the complainant raised a violation of the right to confidentiality and argued that the respondent had, despite the existing confidentiality request in the Central Registration Register, queried her registration data and transmitted it to B*** & Co KG, without complying with the provisions of § 18 para. 5 of the Registration Act. The complainant is a public prosecutor, and her confidentiality request is based on this function. She learned of the alleged violation shortly after January 27, 2023, as on that day, in the proceedings for GZ: *4 C *32/22f of the District Court D***, a detective report was submitted in which her registration data was disclosed. In this proceeding, the complainant's mother was a party and informed her about the disclosure. Subsequently, on January 31, 2021, she made an inquiry to the magistrate of the city C***, which is responsible for her main residence as the registration authority. This authority informed her that her registration data had been queried by the municipality N***, but for inquiries by other entities than the municipality C***, she would have to contact those entities. Her inquiry to the respondent for information on why her registration data had been disclosed despite the existence of a confidentiality request was answered on March 2, 2023. The respondent admitted that the inquiry from B*** & Co KG regarding all registration data of the complainant had been answered despite the confidentiality request, even though it was known that her data was subject to a confidentiality request. It should be noted that the detective agency commissioned by E***IMMOBILIEN AG systematically queried all registration data not only of the complainant and her family but also of other tenants and presumably their family members in several buildings at the municipality N***. Whether any legal interest was demonstrated here is questionable. The response to the inquiry indicates that the municipality N*** likely relied on a decree from the Federal Minister of the Interior dated August 3, 2015, in failing to examine a legal interest - which in her case was entirely unjustified - which contradicts the wording and intent of § 18 para. 1b MeldeG. The involvement of a detective does not exempt one from demonstrating a legal interest.

2. In a submission dated April 14, 2023, the respondent replied and stated that there was a misconduct on the part of an employee of the respondent, who apologized for the error of disregarding the confidentiality request. It was a one-time misconduct, and all information provided up to that point was lawful. The legal basis was the circular of the BMI, which was misleadingly worded. The respondent, as the registration authority, is subject to the requirements of the law and the legal opinion of the BMI as the last in this data chain.

3. The Data Protection Authority granted the complainant the opportunity to be heard with a decision

dated September 29, 2023. The complainant did not submit any further comments.

B. Subject of the Complaint

The subject of the complaint is the question of whether the respondent violated the complainant's right to confidentiality by providing a registration information to a private detective agency regarding the complainant despite the existence of a confidentiality request, without notifying the complainant in advance and allowing her the opportunity to comment.

C. Findings of Fact

The Data Protection Authority has established the following essential facts for the decision:

1. The complainant is employed as a public prosecutor and has an active confidentiality request in the Central Registration Register.
2. An employee of the respondent conducted a query and provided information based on an inquiry from the detective agency B*** & Co KG dated December 27, 2021.
Main Residence of the Complainant and subsequently transmitted this information to B*** & Co KG.
3. The Complainant was not notified prior to the provision of information to B*** & Co KG and was also not given an opportunity to express her views.
4. The mother of the Complainant was a party to the proceedings under GZ: *4 C *32/22f, at the District Court D***. In the context of these proceedings, a detective report was submitted on January 27, 2023, which contained registration data of the Complainant. The mother of the Complainant informed her shortly after January 27, 2023, about the submission of the detective report.
5. On January 31, 2023, the Complainant requested information from the Magistrate of the City of C***, which is responsible for her main residence as the registration authority, regarding who accessed the Complainant's data in the Central Registration Register in the last three years.
6. By letter dated February 17, 2023, the **** of the Magistrate of the City of C*** provided the requested information to the Complainant and indicated that there had been access to the Complainant's data by the Respondent.
7. By letter dated March 2, 2023, the head of the Respondent confirmed the access to the Complainant's data and its transmission to B*** & Co KG by an employee of the Respondent. The head of the Respondent stated that the employee acted in relation to a communication from the BMI dated August 3, 2015, BMI-VA1500/0168-III/3/2015 during the inquiry and transmission of the Complainant's data.

****Assessment of Evidence:**** The findings are based on the content of the files and the submissions of the parties. The findings regarding the process of providing the registration information arise from the consistent submissions of the Complainant and the Respondent. The Respondent has admitted in both the present proceedings and in the letter submitted by the Complainant dated March 2, 2023, that an employee of the Respondent provided the information without involving the Complainant. The findings that the Complainant only became aware of the inquiry and transmission to B*** & Co KG in the context of a civil proceeding in which the mother of the Complainant is a party are also based on the submissions of the Complainant.

****D. From a legal perspective, it follows that:****

****D.1. On the timeliness of the complaint****

According to § 24 para. 4 DSG, the right to have a complaint processed expires if the complainant does not submit it within one year after becoming aware of the event causing the complaint, but no later than three years after the event allegedly occurred. Late complaints are to be rejected.

The deadlines mentioned in § 24 DSG are preclusive periods (see OGH 31.07.2015, 6 Ob 45/15h and Jahnel, Data Protection Law, Update, p. 191 regarding the predecessor provision of § 34 para. 1 DSG 2000 as well as Bresich, Dopplinger, Dörnhöfer, Kunnert, Riedl, DSG, p. 190 regarding § 24 DSG), which must be taken into account ex officio, i.e., in the case of established facts without objection (cf. Dohr/Pollirer/Weiss/Knyrim, Data Protection Law, § 34, note 2 regarding the predecessor provision of § 34 para. 1 DSG 2000). It is evident from Bresich, Dopplinger, Dörnhöfer, Kunnert, Riedl that the limitation rule of § 24 para. 4 DSG regarding the timeframes for the expiration of the right to have a complaint processed largely corresponds to § 34 para. 1 DSG 2000 (subjective period of one year from knowledge of the facts and objective period of three years from the occurrence of the event).

As the findings reveal, an inquiry into the Complainant's data from the Central Registration Register took place on December 27, 2021, and this data was transmitted to B*** & Co KG. The Complainant was, as further established, not informed about the inquiry and became aware of this process at the earliest on January 27, 2023, due to the submission of a protocol in the proceedings under GZ: *4 C *32/22f in which the mother of the Complainant was a party and informed the Complainant about the submission.

The complaint of the Complainant dated April 5, 2023, was therefore submitted within the period stipulated in § 24 para. 4 DSG.

****D.2. Regarding the alleged violation of the right to confidentiality****

General provisions on the processing of personal data and the principles for their processing

According to § 1 para. 1 DSG, everyone has the right to confidentiality of their personal data, provided that there is a legitimate interest in it. The existence of such an interest is excluded if data, due to their general availability or their lack of traceability to the affected person, are not subject to a confidentiality claim.

The GDPR and, in particular, the principles enshrined therein must be taken into account in the interpretation of the right to confidentiality (cf. the decision of the DSB dated October 31, 2018, GZ DSB-D123.076/0003-DSB/2018).

As established, there was at least at the time of the inquiry a block in the Central Registration Register regarding the Complainant.

According to § 16 Abs. 1 MeldeG, the registration authorities are authorized as joint controllers in accordance with Art. 4 No. 7 in conjunction with Art. 26 Abs. 1 GDPR to process their registration data for the purposes of maintaining the Central Registration Register – with the exception of information regarding religious affiliation – along with any existing information blocks and associated deregistrations in such a way that each controller has access to the data in the processing that has been provided to them by the other controllers (Central Registration Register).

According to § 18 Abs. 1 MeldeG, the registration authority is obliged, upon request and proof of identity, to provide information from the Central Registration Register regarding whether and, if applicable, where within the federal territory a clearly identifiable person is or was registered, to the extent of § 16 Abs. 1 leg. cit.

If there is no registered or last registered primary residence for the sought person or if there is an information block regarding them, the information from the registration authority shall state: "There are no data available for a registration inquiry regarding the sought person." If the details provided by the requester cannot be clearly assigned to a registered person, the information from the registration authority shall state: "Based on the identity information, the sought person cannot be clearly identified; no information can be provided." The jurisdiction for providing information is determined by the residence (seat) or stay (§ 3 No. 3 AVG) of the requester.

According to § 18 Abs. 2 leg. cit., any registered person may request the registration authority to ensure that registration information about them is not provided (information block). The request must be granted if a legitimate interest is credibly demonstrated. If such an interest is evident, the information block can also be ordered or extended ex officio. The information block can be ordered or extended for a maximum duration of five years; it remains in effect during this time even in the event of deregistration.

According to § 18 Abs. 5 MeldeG, if an information block exists regarding a person, the information from the registration authority shall state: "There are no data available for a registration inquiry regarding the sought person." Information according to Abs. 1 must be provided in these cases if the applicant demonstrates that they can assert a legal obligation of the affected person. In such a case, the registration authority must notify the obligated person before providing the information and give them the opportunity to respond.

D.3. In the Matter

Regarding the complainant, there is an information block according to § 18 Abs. 2 MeldeG.

Accordingly, the respondent would have been obliged to inform that there are no data available for a

registration inquiry regarding the complainant as the sought person, or the respondent, as the registration authority, would have had the obligation under § 18 Abs. 5 leg. cit. to notify the complainant as the obligated person before providing any information and to give them the opportunity to respond. As stated by the respondent itself, this was, however, neglected by the employee of the respondent who conducted the contested inquiry.

In this context, it should be noted that employees who have access to personal data within an organization are generally not considered as controllers or processors, but the processing is ultimately attributed to the controllers (see, for example, the decision of the BVwG from April 27, 2022, GZ: W214 2237072-1).

The respondent is a "public authority" according to § 1 Abs. 2 DSG, which means that the use of personal data requires a (formally) legal basis, and the inquiry was also conducted within the framework of sovereign administration, namely when providing a registration inquiry according to § 18 Abs. 1 MeldeG.

Since there was an information block regarding the complainant at the time of the relevant inquiry, such a registration inquiry could only be lawfully provided under the conditions of § 18 Abs. 5 leg. cit. However, as stated by the respondent itself, the complainant was not notified before the provision of the registration information, nor was she given the opportunity to respond, which means that the respondent violated the provisions of § 18 Abs. 5 leg. cit.

In the absence of legal coverage, the processing in question is already deemed unlawful, and the complaint should therefore be upheld.

Given this outcome, it is unnecessary to address the question of whether a legal interest of third parties in receiving the registration information existed.

It was therefore decided accordingly.